

25SMCV02778 25SMCV02778

County: los-angeles

Division: Civil Law and Motion

Department: 9

Hearing date: 2026-08-03

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Case Number: 25SMCV02778 Hearing Date: August 3, 2026 Dept: 9

Tentative

Ruling

Alfred

Freitas v. Schindler Elevator Corporation, et al., Case No. 25SMCV02778

Schindler

Elevator's Motion for Reconsideration

Hearing

Date: August 3, 2026

Background

Plaintiff

Alfreda Freitas ("Frietas") sued Defendants Macerich Vintage Faire LP ("Macerich"), and Schindler Elevator Corporation, for negligence arising out of an accident involving an escalator at a JC Penny's store inside the Vintage Faire Mall located at 3401 Dale Road, Modesto, CA 95356. (Complaint, ¶ 5.) Macerich owns the mall and leases the store space to JC Penny's.

In

September 2025, Freitas amended the complaint to add JC Penny's as a defendant.

On January

8, 2026, the Court overruled Macerich's demurrer to Freitas's negligence claim.

On January

27, 2026, Schindler filed this motion seeking relief from waiver of objections to Plaintiff's Form Interrogatories, Special Interrogatories, Requests for Production of Documents, and Requests for Admission, Set One. On June 4, 2026, Schindler's counsel failed to appear for the hearing, and the Court denied the motion on the grounds that the responses were not verified. On June 12, 2026, Schindler filed this motion for reconsideration. As of July 27, 2026, this motion is unopposed.

On March

17, 2026, Macerich moved to transfer venue to Stanislaus County. On July, 9, 2026, the Court granted Macerich's motion, and advanced this motion to July 31, 2026, to be heard before the transfer to Stanislaus County.

Arguments

Schindler

argues that it inadvertently failed to include the signature page showing that its discovery responses were, in fact, verified. Schindler argues that its failure to include the responses was a mistake due to the handling attorneys' departure from the firm. (Motion for Reconsideration, p. 3.) Schindler attaches the verification pages to this motion. (Chung Decl., Exhibit B.)

Motion

for Reconsideration

Under Code

Civ. Proc. § 473(b), "[t]he court may, upon any terms as may be just, relieve a party or the party's legal representative from a judgment, dismissal, order, or other proceeding taken against the party through the party's mistake, inadvertence, surprise, or excusable neglect. Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted, and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken."

"When an

application for an order has been made to a judge, or to a court, and refused in whole or in part, or granted, or granted conditionally, or on terms, any party affected by the order may, within 10 days after service upon the party of written notice of entry of the order and based upon new or different facts,

circumstances, or law, make application to the same judge or court that made the order, to reconsider the matter and modify, amend, or revoke the prior order. The party making the application shall state by affidavit what application was made before, when and to what judge, what order or decisions were made, and what new or different facts, circumstances, or law are claimed to be shown.” (Code Civ. Proc., § 1008, subd., (a).)

As it

relates to new or different facts, circumstances, or law under Code of Civil Procedure section 1008, subdivision (a), “the moving party must provide a satisfactory explanation for the failure to produce that evidence at an earlier time.” (Shiffer v. CBS Corp. (2015) 240 Cal.App.4th 246, 255.)

Furthermore, “facts of which the party seeking reconsideration was aware at the time of the original ruling are not “new or different.” (In re Marriage of Herr (2009) 174 Cal.App.4th 1463, 1468.)

Additionally,

“[e]very court of record has the inherent power to correct its records so that they shall conform to the facts and speak the truth, and likewise to correct any error or defect occurring in a record through acts of omission or commission of the clerk in entering of record the judgments or orders of the court, and such correction may be made at any time by the court on its own motion.” (Nunn v. JPMorgan Chase Bank, N.A. (2021) 64 Cal.App.5th 346, 361, quoting Siegal v. Superior Court of Los Angeles County (1968) 68 Cal.2d 97, 101.)

Analysis

This

motion was brought on June 12, 2026, within ten days of service of the Court’s June 4, 2026, ruling, and well within six months of the Court’s ruling.

Pursuant

to its June 4, 2026, ruling, the Court has reviewed the verifications that Schindler provided and finds that Schindler’s discovery responses were substantially compliant. (Chung Decl., Exhibit B.)

The Court

finds that Schindler’s failure to appear at the hearing was due to excusable neglect as the handling attorney on this matter departed the firm not long

before the hearing and failed to inform the new attorney of the hearing date. (Chung Decl., ¶¶ 4-5.)

Schinder's

Motion for Reconsideration is GRANTED.

Conclusion

Schinder's

Motion for Relief from Waiver of Objections is GRANTED.